

NGB to "(i) demonstrate financial operational capability to administer its sport; (ii) be financially and operationally transparent and accountable to its members and to the corporation [the USOPC]; (iii) adopt a budget and maintain accurate accounting records in accordance with accounting principles generally accepted in the United States of America (GAAP); (iv) submit its complete IRS Form 990 and audited financial statements, including management letter and budget, to the corporation annually; (v) post on its website its current bylaws and other organic documents, its IRS form 990 for the three most recent years, and its audited financial statements for the three most recent years; (vi) satisfy such other requirements as are set forth by the corporation."

The Term Sheet's Section 13 restricts USA Cricket's audit rights. It says USA Cricket must negotiate and agree upon a mutually acceptable auditor, with rights limited to one annual review. Any dispute triggers a costly arbitration mechanism, making full oversight impractical and opaque.

ICC's "No government (or other public or quasi-public body) interference" Rule

According to article 2.4, clause D of the ICC Memorandum & Articles of Association, each member must at all times "manage its affairs autonomously and ensure that there is no government (or other public or quasi-public body) interference in its governance, regulation and/or administration of Cricket in its Cricket Playing Country (including in operational matters, in the selection and management of teams, and in the appointment of coaches or support personnel)."

Given that ACE controls the MLC and Minor League structure, funds national team salaries and venues, owns revenue-generating rights, and can withhold payments based on its sole discretion, the ICC could classify ACE's position as private interference, potentially triggering a review or suspension, especially with Olympic certification on the line.

How cricket boards are structured globally

Most national cricket bodies operate as independent member associations or non-profit federations that administer domestic competitions, select national teams, and interface with the ICC.

While governments may provide funding, security, or stadium support, the ICC requires that boards "manage their affairs autonomously" and ensure "no government (or other public or quasi-public body) interference" in governance or administration.

Recent examples of ICC action

The ICC typically penalises boards for governance failures tied to government interference. USA Cricket's case is unusual, stemming from private overreach, but the principle of autonomy remains the same.

Sri Lanka (2023): Sri Lanka Cricket was suspended on November 10, 2023, for failing to "manage its affairs autonomously" and allowing government interference. The ICC lifted the ban in early 2024, saying it was satisfied SLC had restored compliance with membership obligations.

Zimbabwe (2019): ICC froze funding and barred the team after a government commission took control of Zimbabwe Cricket. It was reinstated once governance conditions were met.

Nepal (2016): The Cricket Association of Nepal was suspended following government involvement and disputed elections, and was readmitted on a conditional basis after reforms were effected and elections held in 2019.

These cases underline the risk for USA Cricket; while many countries are penalised for state interference, the U.S. challenge is almost the mirror opposite — private overreach concentrated in a long-term commercial partner. If autonomy is the test, the form of control should matter less to the ICC than the fact of it.

The ICC has begun taking steps to "reset" and overhaul the leadership and governance structures of USA



Response from ACE

Sportstar reached out to ACE with several questions related to the structural governance issues, including operational transparency in the USA Cricket-ACE partnership and conflict of interest. In response, ACE stated:

"The questions you have raised reflect a fundamental misunderstanding of the Term Sheet and the relationship between USAC and ACE, and are both inaccurate and misleading. "We are unable to comment further, as the Term Sheet is confidential and both parties are bound by strict confidentiality obligations."

Cricket, following concerns raised by the USOPC about whether USA Cricket meets the independence and athlete-representation standards required for Olympic recognition.

Is it conceivable that a sport is introduced in the Olympics without the host country fielding a team in the event? History's answer is intriguing. Cricket debuted, as a one-off, in the Paris Summer Olympics in 1900. Great Britain, represented by the Devon and Somerset Wanderers, a club side, and a team known as All Paris, comprising mostly British emigrants residing in France and possibly including a couple of French players, competed — and, unsurprisingly, Great Britain triumphed. The winning team was awarded silver medals and the loser bronze. The medals were later converted to gold and silver respectively.

As host, the US national team is guaranteed a place at the Games. But the real question is: when cricket takes the stage under the Olympic flame, who will be calling the shots — USA Cricket, or someone else nominated by the USOPC? The sporting world will be watching.

With inputs from Santadeep Dey & Dhruva Prasad